STATE OF NEW YORK PUBLIC SERVICE COMMISSION
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CASE 19-G-0309 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service.
CASE 19-G-0310 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corp. d/b/a National Grid for Gas Service.
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July 31, 2019
2:00 p.m.

Nassau County Legislative Chambers
Theodore Roosevelt Executive Legislative Building
1550 Franklin Avenue
Mineola, New York 11501

PUBLIC STATEMENT HEARING
TRANSCRIPTION OF PROCEEDINGS

BEFORE:

MAUREEN F. LEARY

REPORTED BY:

Kristina Trnka

PRESENT:

National Grid Staff

SPEAKERS:

Richard Berkley, Esq.	Public Law Utility Project
Eric Alexander	Vision Long Island
Shannon Boyle	New Ground Inc.
Barbara Beatus-Vegh	Girls Inc. of Long Island

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MS. LEARY: I'm going to call Case 19-G-0309 proceeding on motion of the Commission as to the rates, charges, rules, and regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for gas service.

And Case 19-G-0310 proceeding on motion of the Commission as to the rates, charges, rules, and regulations of KeySpan Gas East Corp. d/b/a National Grid for gas service.

Good afternoon, again. Ladies and gentlemen, my name is Maureen Leary. I'm an administrative law judge for the Department of Public Service. I will be presiding over this public statement hearing, as well as the evidentiary hearing and other proceedings in these cases.

As I explained earlier, prior to the information session, this public statement hearing was noticed by the secretary on July 10, 2019 and that was a notice soliciting public comments and notifying of both this public statement hearing, as well

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as the public information session.

This hearing is an opportunity for members of the public to comment on National Grid's request, which was made on April 30, 2019 to increase its gas rates.

I have explained my role to you. I want to let you know that this public statement hearing will be transcribed. And the statements given today will not only be considered by the administrative law judge who is assigned to this matter but also be available to the Commission. They will be filed publically on the Department's Document Matter Management system or fs it's popularly known.

This is not an evidentiary hearing today. Cross-examination and questions will not be permitted. It is rather just a forum to allow the public to provide their positions on the rate cases.

If you would like to make a statement today, please fill out a registration card that is available at the table outside of the room. I will call

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speakers one by one using those cards. Please speak directly into the microphone and speak slowly and clearly for the court reporter so that your statement can be accurately transcribed and captured for the record.

I have apologize in advance if I incorrectly pronounce your name.

As a courtesy, please do not interrupt the speaker. If you would like to say something, please fill out a card. They will be given to me and you will be called in order.

If for any reason you prefer not to give a public statement today on the record, this is not the only opportunity for you to have your views be known. There are many other ways to comment. The fact sheet that's available at the table outside lists the other ways that you can provide your comments. I can also advise you of that after the close of the public statement hearing.

There is a suggested a deadline I

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believe it is September 30th.

Does that sound right, Mr. DeCicco?

MR. DECICCO: I believe it's August 26th.

MS. LEARY: August 26th?

MR. DECICCO: Yes.

MS. LEARY: Thank you.

So please try to file your statement by then. But statements will be considered after. It's not a hard deadline.

If you have any questions about anything that's going on today, please see me or our consumer service representatives at the registration table outside of the room.

I will not be responding to your statements but please don't interpret my silence as agreement or disagreement. That's not my role to agree or disagree. I want you to be heard without interruption.

Are there any questions about what I've just gone over?

(No verbal response given.)

MS. LEARY: Okay. I am going to

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call first, Mr. Richard Berkley.

MR. BERKLEY: Thank you.

Good afternoon, Administrate Law Judge Leary. And thank you to National Grid and to all the customers, advocates, and community groups that are here today and for the elected officials who will be present this evening and also in Brooklyn and Queens today at other public statement hearings on this rate case.

My name is Richard Berkley. I am the executive director of the Public Utility Law Project of New York, otherwise known as PULP. I'm here today to share our concerns about National Grid Long Island, otherwise known as KEDLI's proposed rate increase.

A little bit about my organization first. We're a 40 year old, nonprofit, public interest law firm. We have a unique mission. In New York we are the sole, independent entity whose mission is to advocate, educate, and litigate on behalf of low and fixed income utility consumers, which includes senior, the disabled and

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returning veterans.

We're an active party in this rate case, in the KEDNY -- that is Brooklyn Union Gas -- rate case, the Con Edison New York City and Westchester rate cases, the New York State electric and gas, Rochester gas and electric rate cases and several others that are going on. In all of those rate cases, as in this one, we represent the interests of low and fixed income consumers and we will submit intervener testimony and rebuttal testimony.

The first question that we normally address when we get involved in a rate case like this one is the issue of affordability. National Grid's initial filing was seeking roughly a six percent increase in delivery rates on Long Island. It's now been adjusted upwards to about eight percent.

They were also asking for approximately an increase of $49 million in year one and more than $170 million over four years. I would add here that this doesn't include any added costs that will

arise as a result of the existing moratorium and if the NESE Pipeline -- the Williams Pipeline -- is denied once again.

Originally that was forecasted to be an increase of $7 a month per customer on average, it is now over an $8 increase per customer per month on average on their heating bill. That may seem like a small increase and compared to the roughly 19 percent that Brooklyn is getting in their increase from National Grid it does appear small. But National Grid's gas rates are already among the highest in New York State.

The company just a 9.3 percent increase three years ago in their 2016 rate case. Let's be honest, the truth is that many National Grid customers already struggle to pay their bills.

Long Island is not an inexpensive place to live. In Nassau County roughly 79,000 residents live in poverty. 11,000 seniors age 65 or more live in poverty. 22 percent of female-headed households with children present live in poverty. By the

way, 33 percent of children in Nassau County qualify for a free or reduced cost school lunch under federal guidelines. If you add in those families that we used to call the working poor but now are called asset-limited, income-constrained but employed than more than 30 percent of residents in Nassau are unable to pay all of their bills on a monthly basis and often must choose which bills remain unpaid at the end of the month. It is a choice between buying food or medicine for your children or paying the rent or paying the utility bills.

Nassau can be a wonderful place to live but again it is not cheap. The household survival budget suggests a worker must make at least $44.60 per hour or $89,000 annually to keep a family of four from sinking into poverty. And yet, one of the biggest fights in New York over the past few years was the fight for 15, to get $15 an hourly as an hourly wage standard across the state.

National Grid is seeking another

rate increase that like its last one is several times the pace of inflation, several times the pace in Social Security or middle class pensions and quite honestly, it is simply too many times the ability of residents to afford it. Especially when you add in the 2016 increases and the ever present burden of LIPA, which is one of the most expensive electric companies in the country.

Overall you must ask yourself how can this be affordable. How long can you -- residents of Long Island -- continue to survive against the crisis of unaffordability that the statistics of Nassau and, later on when I talk in Suffolk County, reveal? When will these ever increasing prices in the cost of living stop going up?

If the Public Service Commission approves the company's request, many New Yorkers residing on Long Island will no longer be able to afford to stay to a place that they moved to because of the quality of

life and many of the other positives of living here on the Island. No one should be forced to decide on a monthly basis whether to pay rent, buy food, or medicine or whether to pay to keep their house warm during the winter.

PULP asks the Commission to scrutinize National Grid's rate request very carefully to make sure the rates customers are paying or being asked to pay are just and reasonable, affordable and fair. And as climate change continues to increase the ferocity of storms, that the system will be reliable, resilient, and survivable and keep people warm during hurricane season and winter.

Besides the rate increase, PULP has heard from many business customers and residents in Long Island and also in the city of New York that are receiving notices indicating the company will not provide new gas connections. Recent stories in Newsday, the Wall Street Journal, and other media have shown that start-up businesses may face

many thousands of dollars of extra costs because of the inability to get gas hookups.

While National Grid's gas moratorium in Long Island and parts of Queens, Brooklyn, and Staten Island is not directly a part of this rate case necessarily, the effects it will have on customers will be considered in the rate case and should be. It weighs heavily on public interest and will drive further expenses by the company. How the company is going to mitigate the gas moratorium should also be transparently analyzed in the context of a full investigation of the nature of the shortage and the company's inability, right now, to the job for which it was created and under which it has a duty as a public service law.

And let's not forget that the moratorium is halting economic development, which is crucial to Long Island, lowers employment and injures small and large business alike.

The company, as it notes, should be and is investing in creating safe and

renewable energy options. It should be investing in reasonable methods also to lessen the gaps in capacity restraints that have triggered this crisis. National Grid's moratorium, which customers and elected officials from across Long Island, have related to PULP came quite abruptly in their opinion without notice. And will likely force customers to make a decision to switch to electric heat pumps of one sort or another. This option will be extremely expensive and cost-prohibitive for low and moderate fixed income residential customers. And quite honestly, it is unclear at this time if LIPA's system will be able to handle such a significant change in usage if or when any or most Long Islanders move their heating to heat pumps since we know there will not be a large move back to propane or other carbon intensive forms of heating such as diesel fuel.

On a side note, PULP is also concerned about how National Grid has been using its customers' email addresses to

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lobby elected officials to support the Williams Pipeline. We are not aware of such a practice being carried out by other energy utilities in the state of New York where they had encouraged their customers through their personal email to actively lobby in favor of this specific government action. We ask that the Commission open a separate investigation into the moratorium noted above and also to determine what measures National Grid should have taken to advert this foreseeable criss.

In conclusion, as a party to this case, the Public Utility Law Project respectfully asks the Commission to scrutinize National Grid's rate request, to make sure that the rates Long Islanders are paying now and in the future are just and reasonable, affordable and fair. And we also respectfully request the Commission to open an investigation into the causes and the depth of National Grid's gas moratorium. Thank you.

MS. LEARY: Thank you, Mr. Berkley.

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Eric -- Eric D-E -- come on up.

Can you tell me --

MR. ALEXANDER: Eric Alexander.

MS. LEARY: That's an A? I was looking at it as a D.

MR. ALEXANDER: I failed second grade penmanship.

MS. LEARY: I apologize.

Mr. Alexander.

MR. ALEXANDER: Yes. Thank you. Thank you so much.

Thank you members of the Public Service Commission, folks from National Grid who are here. We are not an expert on rates but I do want to make some commentary here.

Eric Alexander, director of Vision Long Island. We are smart growth, downtown planning organization nonprofit that focuses on downtown revitalization, infrastructure investment for Long Islanders and local planning on growth driven by local community folks.

So, you know, the PSC we trust will set rates that are fair as it relates to

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National Grid's proposal. We are not experts on this, we recognize that. We do believe this process will yield a fair result.

But I am here today to attest to the behavior of National Grid in five areas. We've done this in past cases to so three years ago. Number one, this company has been a partner in recovery and storm hardening efforts post-Sandy. Helping to get businesses up and running. We've seen that on the front lines with all the volunteers that we work with on the south shore. And then their preventative storm hardening activities that they're done since. Those are all valid and we can attest to them on a local level.

Number two, they have been a partner in downtown growth. That's been a big shift in change on Long Island. Years ago it was just about suburban sprawl. We've been focussing development in downtown centers and we need that. Many members of the corporate community across Long Island have

been, I say, maybe joyfully hostile to the concept of downtown and affordable housing.

National Grid has been a helpful partner for affordable housing projects, mixed use downtown projects, also grants for downtown projects. Again, getting the service right. This is big concern for more years. There was trouble -- we knew this moratorium was going to come because there was trouble assigning gas to some of the bigger projects. We knew there was some shortages coming. This is not a surprise to a lot of folks across Long Island, anybody in the development community that has been trying to build downtown.

Big concern of the moratorium -- even though I know it is not the purpose of the hearing, it was brought up by a prior speaker so I will take a second on this -- we are deeply concerned -- our organization is on the record that NESE Pipeline move forward for all the reasons of having community supported downtown growth for natural gas.

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We need to ensure that that service continues. We know green energy is our future but this transition time is key -- it is critical to have the adequate supply. The moratorium in two months has yielded, I think, 2,400 applications. Many of them on Long Island in Nassau and Suffolk and many tied to new downtown, affordable housing projects. Small businesses that have been hurt. We want to ensure that the NESE Pipeline goes through.

Anyway, back to the main purpose of the hearing. Number three, growth and renewables. We know they've been working on geothermal, we know they work on efficiency programs. We've actually attempted to get some of these things going with local small businesses and new development. We're aware of the programs and we actively promote, market, and assist because we want to see more of these activities. Again, renewables and efficiency are our future. That's where we want to get to.

Four, affordability. You know, you

may hear from other folks that are tied to represent human service programs and work with folks in need of affordable housing or folks that need support services but clearly natural gas, even with this increase, is significantly cheaper than oil and also the green energy alternatives.

I was at a four-hour hearing for the NESE pipeline and I listened to folks tell me that geothermal is the future and that's the answer. We want it to be but price-wise it's just not. You know, you can't get -- that's great for million dollar homes and such but it's not there yet without massive subsides. We need natural gas service to continue. It is significantly cheaper alternative to some of the green energy alternatives that are on the table right now.

Fifth, corporate partnership. There's a real lack of corporate philanthropy on Long Island. We have seen this company give back to, you know, local groups, local chambers, lots of community

and youth services organizations. They've also gotten involved with Long Island's Youth Summit. They've been supporting that. With local high schools we see them get involved in STEM. We've seen them get involved in community projects in Freeport, Wyandanch, and Huntington Station in recent years. As far as getting their staff involved and engaged, that's important stuff.

We're not typically a fan of corporate leadership talking about how wonderful they are but in this case at least the money is going back to local communities. We don't see that enough. Quite frankly, we just don't see that enough. We need to see more of it.

So for those five reasons we support a fair rate increase. Again, not for us to decide and not our expertise. Thank you.

MS. LEARY: Thank you.

The third speaker is Shannon Boyle.

MS. BOYLE: Good afternoon. My name is Shannon Boyle. I'm the executive

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director of New Ground. We are a 501(c)(3) nonprofit organization working with homeless families and veterans on Long Island.

I'm here in support of National Grid's rate increase request. Specifically because of the low and moderate income families and veterans that we work with.

We have seen firsthand in our work directly with National Grid how great their energy affordability programs are. For low and moderate income households gas is simply more affordable than oil for heat. They have 12-month payment plans that are very user friendly for our clients. And even applying for social services, HEAP assistance, and whatnot is much easier for our clients with National Grid than trying to secure reimbursement if on oil heat.

Personally, I'm a National Grid customer and professionally New Ground is also a National Grid customer. At this time I do feel that a rate increase is affordable for some of us on Long Island to help support those who can't afford it on Long

Island. Through National Grid's affordability programs, those who can't afford it have access to affordable heat options. That is critical and we need to see more of that.

We have families in housing that would like to be eligible for gas service and if that is no longer available because there isn't gas available, oil heat will not be an affordable opinion. They will be forced to make difficult decisions between heat versus food versus medical needs versus transportation. Thank you.

MS. LEARY: Thank you.

Barbara Beatus-Vegh.

Did I get that?

MS. BEATUS-VEGH: Yes, you did.

MS. LEARY: Wow. Welcome.

MS. BEATUS-VEGH: Good afternoon. I am Barbara Beatus-Vegh.

As the associate director of Girls Inc. of Long Island I am speaking in support of National Grid's rate review proposal for the Long Island area.

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National Grid's blueprint to reduce greenhouse gas emissions, in coordination with city and state plans will help achieve public policy goals for a greener future for the New York region. Their initiatives to connect customers to programs and services will help them take control of their own energy costs, helping them save money on their bills while helping ease the burden on our system and the environment.

Long Island and its neighboring seaside communities are a thriving place for residents and businesses. Having a strong, reliable, and sustainable energy system is key to continued progress.

National Grid has also been a strong supporter of STEM education across our region and has provided support and resources to ensure that we are educating and preparing the next generation of engineers and workforce to serve our community.

In particular, National Grid has partnered with Girls Inc. on several field

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trips to the Northport Power Plant. They have also engaged their employees in various career panel and mentoring opportunities all to inspire young girls across our community to grow their understanding and passion for STEM fields.

Investments to continue modernizing the infrastructure and implement improved safety requirements are necessary. I think it's necessary for National Grid to operate effectively to implement innovative technologies to incentivize conservation.

Thank you for your time.

MS. LEARY: Thank you.

That concludes all of the speakers that I have. What we are going to do is go off the record. I will keep the hearing until 3:00, at least one hour.

(Whereupon, a discussion was held off the record.)

MS. LEARY: It is now just after 3:00 p.m. I will be closing the record for this Mineola public statement hearing.

No additional speakers have arrived

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in order to provide any further public comment. We are going to close this public statement hearing.

(Time Noted: 3:00 p.m.)

C E R T I F I C A T E

I, KRISTINA TRNKA, a shorthand reporter and Notary Public within and for the State of New York, do hereby certify:

I reported the proceedings in the within-titled matter, and that the within transcript is a true record of such proceedings.

I further certify that I am not related to any of the parties to this action by blood or marriage, and that I am in no way interested in the outcome of this matter.

IN WITNESS WHEREOF, I have hereunto set my hand this 5th day of August, 2019.

Kristina Trnka

KRISTINA TRNKA

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33 (1) 10:2

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7 (1) 9:6
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